



The Selectboard
TOWN OF WESTHAMPTON
TOWN HALL
1 SOUTH ROAD
WESTHAMPTON, MASSACHUSETTS 01027

The Westhampton Selectboard

Monday, May 9, 2022, at 7:00 PM

The Westhampton Selectboard scheduled a regular meeting on Monday, May 9, 2022, at 7:00 PM.

Call to Order

The meeting was called to order at 7:02 PM. Present: Phil Dowling, Maureen Dempsey, Teri Anderson (via Zoom).

Also present: Chief David White, Chief David Antosz, Highway Superintendent Bill Jablonski, Sam Ostroff (Tob Hill Road), Steven Holt (Conservation Commission), Robby Armenti (Board of Health), Mr. Ben Warren.

Discussion / Decision Items:

1 - Tob Hill / Spruce Hill Road – Concerns about After-Dark Activity (see letter from Ostroff)

The board hosted a discussion about the general issue presented by Mr. Ostroff in his letter to the board - nighttime activity involving younger folks with vehicles, setting of campfires after dark, excessive speed, very late activity into the night, etc.

Mr. Ostroff noted concerns of trash, noise, late-night activity, and the risk of a fire getting out of control. Mr. Ostroff noted that fires have been found still smoldering the following day.

Mr. Jablonski noted that closing a road – even in the interest of public safety – could impact the Town's chapter 90 funding.

Mr. Jablonski noted that the upper section of the road is in somewhat poor condition, due to legitimate logging activities, as well as the department's efforts to deter unwelcome activity.

Mr. Ostroff also noted that the activity in question appeared to be happening on a regular basis.

Ms. Anderson noted that the activity appears to be happening on town-owned land, and that regulations as to the use of the land could be implemented, and posted.

There was discussion as to whether roads could be barricaded after dark; Mr. Jablonski noted that it likely could not, as it might still impact Chapter 90 funding.

There was discussion as to the possibility of non-criminal disposition of infractions (fees).

Similar cases of unwanted activity in other parts of town were discussed, and the success or failure of various measures taken were noted.

Generally, it was determined that the Conservation Commission and Selectboard might consider drafting use regulations, which could then be promoted, and then property posted accordingly.

Mr. Ostroff was also encouraged, if he suspected any inappropriate activity was afoot, to notify town departments and/or contact the town or state police.

The board agreed to follow up with department heads at their next regular meeting.

2 - Tag Sale Permit Request (see letter from Cleary)

A tag sale permit request was received from Ms. Margot Cleary at her home on 180 Southampton Road on May 28, with possible rain dates of June 4, June 11, and/or June 18.

It was MOVED by Dempsey, SECONDED by Anderson

To issue the permit as requested.

3, 0, 0. (7:23 PM)

3 - Transfer Request: Snow Removal Budget (see Transfer request)

Mr. Finn requested approval of an end-of-year transfer request, to cover the overspent amount of the Snow Removal Budget as follows:

TRANSFER FROM:

Fund	Description	Original Appropriation	Current Balance	Proposed Transfer
015129.114	Admin Asst Search / Training	\$3,620.00	\$2,293.40	\$ 2,000.00
015175.702	Consulting Planner	\$6,000.00	\$5,600.00	\$ 3,500.00
015151.300	Counsel Fees	\$20,000.00	\$15,957.64	\$ 3,500.00
015425.700	Road Machinery Fuel	\$43,050.00	\$18,431.45	\$ 4,000.00
015132.780	Reserve Fund	\$15,000.00	\$15,000.00	\$ 3,500.12
TOTALS FUNDS to be TRANSFERRED				\$16,500.12

TRANSFER TO:

Fund	Description	Original Appropriation	Current Balance	Proposed Transfer
015423.700	Snow Removal	\$100,000	-\$16,500.12	\$16,500.12
RESULTING BALANCE				\$0.00

There was some discussion about the Admin Assistant Search / Training fund as related to the Treasurer / Collector / Clerk fund. After brief review, it was MOVED by Dowling, SECONDED by Dempsey

To approve the transfer request as presented.

VOTED: 3, 0, 0.

Department and Committee Updates

Highway (Bill Jablonski)

Mr. Jablonski noted recent activities, including gravel road grading, some equipment training for staff, some tree removal under the direction of the Tree Warden, and other

regular work.

4 - MSW Agreement (see letter from Casey)

Mr. Jablonski noted that need for quick action related to the anticipated MSW contract, which should be available sometime near the end of May. The schedule of expected per-ton prices were reviewed.

It was MOVED by Anderson, SECONDED by Dempsey

To accept the pricing as proposed by the HRMC for the next three years, and to authorize Mr. Dowling to review and sign the anticipated contract on behalf of the Town, pending his satisfactory review of the contract.

VOTED: 3, 0, 0 (7:35 PM)

Letter / Request from Ali Jenkins

Mr. Dowling read a letter from Allie Jenkins, requesting the use of the base of Tob Hill Road for a class project. Ms. Jenkins noted that a sunflower, the state symbol of Ukraine, would be painted by HRS students of various ages. Mr. Jablonski noted no objection, and requested approval by the Selectboard as road commissioners.

It was MOVED by Dowling, SECONDED by Dempsey

To approve the request, and to request that the police and highway departments to coordinate with local police and the highway department to ensure public safety.

VOTED: 3, 0, 0. (7:52 PM)

Health (Robby Armenti)

5 - In accordance with M.G.L. Chapter 252, Section 2A(b)(2), the Selectboard will consider whether to opt out of either aerial and/or other mosquito control spraying, as conducted by the State Reclamation and Mosquito Control Board ("SRMCB"), any alternative mosquito management plan, as prepared by the Westhampton Board of Health, and will conduct a formal vote on the matter. Public Comment will be welcomed and considered. (see letter from Driggs, draft plan, and checklist)

Ms. Robby Armenti presented an alternative mosquito plan and opt-out checklist. Additionally, Ms. Armenti noted the proposed efforts to promote awareness about mosquito-borne illness through brochures, posters, a general mailing, through the town's website, and other similar outreach efforts.

Ms. Anderson asked whether the Board of Health was recommending opting out of ALL spraying activities; Ms. Armenti confirmed.

The other requirements were reviewed. Mr. Dowling noted that, in his opinion, the risk from mosquito borne illness appeared to be very low, and the risk from mosquito control aerial spraying would present a higher risk factor.

After further discussion, it was MOVED by Anderson, SECONDED by Dempsey

That the Town of Westhampton opts out of all spraying in accordance with MGL Chapter 252, Section 2A(b)(2), and that it accepts and adopts the alternative mosquito management plan as presented by Ms. Armenti, to be implemented by the Westhampton Board of Health, and the Foothills Health District on behalf of the Town of Westhampton.

VOTED: 3, 0, 0. (7:44 PM)

Ms. Armenti noted a current small surge of Covid, and recommended continued precautions be taken; Ms. Armenti noted that the Board of Health did not, and would not, recommend a mask mandate.

Ms. Armenti also noted a potential new member who may be interested in serving on the board.

Mr. Dowling asked whether the Board of Health had discussed the upcoming town meeting, and whether there were any specific recommendations made regarding that event.

Ms. Armenti replied that, yes, the board had discussed town meeting, but did not recommend any changes to current policies that recommend, but do not mandate the use of facemasks. "We don't see anything else to be done."

Mr. Dowling noted that windows and doors would be opened, screens put in use, masks provided and recommended.

Mr. Jablonski noted that windows would be opened and screens put in place in time for the meeting.

Public Safety Building (Phil Dowling)

Mr. Dowling noted that the retaining wall was nearly done; interior framing was proceeding; exterior was being slowly completed; an occupancy date of July 1 was still the target. Ongoing issues with supply delays continue, but efforts to complete the building continue, in pursuit of the goal of delivering a fully-functional building.

MVP (Teri Anderson)

Ms. Anderson noted diversity / inclusion training would begin next week, and encouraged all staff to sign-up and participate. About sixteen board members are expected to participate as well, and a publicly available session scheduled for later in June. The 'protocol' for any in-person presentation training will be subject to review. The public sessions likely will not be available on Zoom.

Ms. Anderson strongly suggested masking at the public training sessions.

Old Business

Mr. Karl Norris spoke about the cemetery superintendent position, noting that Mr. Duane Nichols had submitted his resignation effective May 14, 2022. The Cemetery Commission board approached the second candidate, Mr. Ed Fisher, about the position, who stated that he would accept it if offered. Mr. Fisher held the position for a number of years, stepping down about eight or nine years ago.

Mr. Norris asked for the board to appoint Mr. Ed Fisher.

It was MOVED by Dowling, SECONDED by Dempsey

To appoint Mr. Edward Fisher as Cemetery Superintendent, effective May 16, 2022.

VOTED: 3, 0, 0 (8:07 PM)

The board extended its appreciation to Mr. Duane Nichols, who served in the position for the previous two months, and thanked Mr. Fisher for stepping up to fill the vacancy.

New Business

Letter from Deane Bates – Req. for ARPA funding (see letter from Bates, and invoice)

The board reviewed a request from Mr. Deane Bates for ARPA funding to cover the installation of new potable water appliances (water bubblers) at the Westhampton Elementary School. After review, it was MOVED by Dowling, SECONDED by Dempsey

To appropriate \$3,486.40 for the installation of new water appliances at the Westhampton Elementary School.

VOTED: 3, 0, 0 (8:11 PM)

Preparation for Town Meeting

Mr. Finn noted that the Annual Town Report is now available to the public.

Mr. Ben Warren briefly noted that preparations for Town Meeting were well underway. There was some discussion related to which parties would be responsible for voicing motions. A member's guide was briefly reviewed. Some potential additions to the Member Packet were discussed, including an overview of reserves (Free cash, Stabilization) and proposed expenditures of same.

The general format of the warrant, the display version to be shown on the screen, and examples of possible motions were reviewed.

Ms. Anderson noted her preference that meeting members be asked to use face-masks, given the recent increase in cases locally.

Ms. Dempsey asked whether a person who refused to wear a mask could be turned away.

Mr. Warrant noted that any effort to require masks needed to have solid legal grounds.

Ms. Anderson requested that counsel be requested to offer an opinion on whether masks could be required

There was additional discussion related to the use of masks, the possibility of mandating their use, whether other town entities (such as the school committees) are changing their policies.

Correspondence

Letter – From Lauren Hotz – use of parking lot for FRS Graduation

A request from Ms. Lauren Hotz was considered for the use of the Town parking areas for high-school graduation. It was MOVED by Dowling, SECONDED by Dempsey

To approve the request.

VOTED: 3, 0, 0.

Review / Approve Minutes

Minutes from April 25, 2022 (see draft minutes from April 25)

Review of minutes from April 25 were deferred to the next meeting.

Review of Payroll and A/P Warrants

The warrants were reviewed. After some review, it was MOVED by Dowling SECONDED by Dempsey

To approve the payroll and accounts-payable warrants as presented.

VOTED: 3, 0, 0.

Other items not reasonably anticipated at time of posting

EMT Reimbursement for damage to Personal Equipment or Vehicle

Mr. Finn noted that Mr. Lee Douchkoff, volunteering as a Westhampton EMT and responding to a call, had damaged his vehicle upon entering the driveway of the call location. Mr. Douchkoff requested whether the town could provide reimbursement towards automobile repairs. The Selectboard determined that no other vehicles or persons were involved, and that no personal injury or liability was involved.

Mr. Finn noted that, as a Westhampton Fire Department EMT, reimbursement should be made in accordance with Section 3.1 of Article 6 of the Town Bylaw, provided that the Fire Chief supported the request.

After brief discussion it was MOVED by Dowling, SECONDED by Dempsey
*To approve the request, and provide reimbursement of up to \$1,000 to help pay for
vehicle damages, in accordance with Section 3.1 of Article 6 of the Town Bylaw.*

VOTED: 3, 0, 0.

Mr. Finn was also authorized in this case to determine if a claim could be filed with the
Town's insurance company in Mr. Douchkoff's behalf.

Fountain Pump Replacement

Ms. Dempsey noted that the pump that operates the fountain on the Town Common needed
replacement. Mr. Bill Tracy has volunteered to do the work, but has asked that the town
buy the replacement pump. Approved by acclamation.

Set date for next meeting: Monday, May 23, 2022

The next regular meeting was scheduled for May 23, 2022, 7 PM.

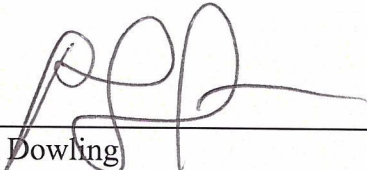
Adjourn

It was MOVED by Dowling, SECONDED by Dempsey **to adjourn.** WITHOUT
OBJECTION. Adjourned at 9:10 PM.

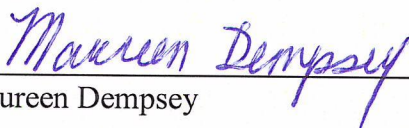
Respectfully submitted,

Douglas C. Finn.

Approved by a vote of the Selectboard at a regular meeting, held on May 23, 2022.



Phil Dowling



Maureen Dempsey

Teri Anderson